tem. Electricity Supply Contract.

Contract particulars	
TEM ("We")	TEM-ENERGY LIMITED
Customer ("You")	DAVALL GEARS LTD
Customer address:	Unit 1 Travellers Lane Welham Green Hatfield
Company number:	06181912
Site address:	The Davall Gear Co Ltd, Travellers Lane, Welham Green, North Mymms, Hatfield
Start date:	01/04/2027
End date:	31/03/2029
Tariff:	RED day/night fixed
Payment method:	Direct Debit
RED Plus Commencement Date:	01/04/2027

TERMS AND CONDITIONS

These Particulars are subject to the acceptance of the tem. energy Power Terms and Conditions relating to the Product stated on Page 1 of this document.

tem. has the right to withdraw this offer at any time prior to issuing written confirmation that the agreement has been accepted on these terms. If the contract is terminated early, additional charges may apply, please ensure you are familiar with all clauses relating to Termination, Change of Ownership/Isolation, Liability and Force Majeure; all of which are highlighted within the terms and conditions.

Our prices are subject to VAT & Climate Change Levy, signed acceptance and successful transfer of the supply point on the agreed start date in the event of a new business supply.

The supply contract is a legal document, and as such is binding on both parties once entered into.

Quote details.

tem

MPAN 00845074101457301942 6 *(supply point)*

Contract price	Unit rate	Estimated monthly cost
Day fixed charges	**20.729p/kWh**	£7,100.10
Day rate	22.17p/kWh	£7,593.67
RED Plus Benefit	-1.441p/kWh	-£493.57
Night fixed charges	**15.532p/kWh**	£2,600.84
Night rate	16.55p/kWh	£2,771.30
RED Plus Benefit	-1.018p/kWh	-£170.46
Monthly charges	**£2,004.96/month**	£2,004.96
Standing charges	£112.73/month	£112.73
TNUoS - Residual Banded Charges*	100% passthrough	£1,892.23
Other charges		
Capacity charges	£2.89/kVA/month	
Climate Change Levy	100% passthrough	
Reactive power	100% passthrough	
Meter charges (Standard)	100% passthrough	
Meter charges (Site visits)	100% passthrough	
Excess capacity	100% passthrough	
Estimated monthly cost		**£11,705.89**

Estimated monthly consumption **50997 kWh**

We use this to calculate your estimated cost.

Day	34252 kWh
Night	16745 kWh

Third-Party commission: 0.1p/kWh

*TNUoS is a National Energy System Operator (NESO) charge that helps cover the cost of running and upgrading the UK's transmission network. The rate shown is based on our latest forecast, which we update regularly in line with NESO's tariff announcements. Final tariffs are confirmed on 31 January each year and take effect from 1 April (e.g. 31 Jan 2026 for charges starting 1 Apr 2026). This means the forecasts on your contract may differ from the charges on your bill. We pass through TNUoS, with no margin applied.

Quote ID
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Terms & meaning.

Terms	Meaning
MPAN	Meter point administration number - 13 digit unique reference code used to identify a specific electricity supply point.
Consumption	Consumption is the estimated total consumption over the contract term for an individual supply point. This is used to calculate the offered rate for the energy contract.
Unit rate	The rate includes both the commodity cost of power and all relevant non-commodity charges (such as TNUoS, RCRC, AAHEDC, DUoS, BSUoS, RO, FiT, CfD, CM, EII Support Levy, Nuclear RAB and distribution and transmission losses).
Day rate	A day rate is the price you pay for each unit of energy used during the day, typically from 7am to 12am. It's usually higher than the night rate, which applies during off-peak hours. We add in a variable margin to your rate to cover us in the event of market fluctuations, so this price is inclusive of any and all tem. fees.
Night rate	A night rate is the price you pay for each unit of energy used during off-peak hours, typically from 12am to 7am. It's usually lower than the day rate, which applies during peak hours. We add in a variable margin to your rate to cover us in the event of market fluctuations, so this price is inclusive of any and all tem. fees.
RED	Renewable Energy Direct - Bypass Big Energy and achieve enhanced pricing through a direct match with renewable generation, all fully managed by tem.
RED Plus Benefit	A fixed benefit, set out in your Quotation, available through our participation in the Exempt Supply Scheme (including P442 arrangements). Payment is conditional on the continued operation of the Scheme, your contract remaining active, and compliance with any required Scheme documentation. The benefit may be amended or withdrawn if Scheme rules change.
Passthrough Charges	A passthrough charge refers to a cost or fee, that is fully transferred to the customer without any deduction by the company. The cost is borne by the customer, as indicated by the 100% fee amount, within the category.
Capacity Charges	A capacity charge is a fee for reserving a set amount of electricity, ensuring it's always ready for your use.
CCL	Climate Change Levy (CCL) is a government environmental tax on energy use by businesses. This fee amount is passed entirely to the customer.
Reactive Power	A reactive power charge is a fee imposed for the reactive power component that some devices draw from the electricity grid. This fee amount is passed entirely to the customer.
Meter Charges	Meter charges are associated with the installation, maintenance, and management of metering equipment and services required to accurately measure and record energy consumption at your supply point.

Declaration of Micro/Small Business Status

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To make sure your account is set up correctly and that you receive the right level of support, we need to confirm whether your business qualifies as a Micro or Small Business under Ofgem's definitions. Please read the definitions below carefully and tick the box that applies to you. If you're unsure, or your status changes later, you can email us at microbusiness-support@tem.energy, and we'll help you update it quickly.

Micro Business Definition

A Micro Business is one that:

- has fewer than 10 employees (or their FTE) and an annual turnover or a balance sheet total of not more than £2 million,
  or
- consumes no more than 293,000 kWh of gas per year,
  or
- consumes no more than 100,000 kWh of electricity per year

I confirm I am a Micro Business Customer ☐

If you've ticked yes to being a Micro Business, please pay particular attention to Appendices 1 and 2 of your Terms & Conditions, as they include key information and additional protections relevant to you.

Small Business Definition

A Small Business is one that:

- has fewer than 50 employees (or their FTE) and an annual turnover of £6.5 million or a balance sheet total of £5 million,
  or
- consumes no more than 500,000 kWh of gas per year,
  or
- consumes no more than 200,000 kWh of electricity per year

I confirm I am a Small Business Customer ☐

Both Micro and Small Business customers can access extra support through schemes such as the Energy Ombudsman Service, and can seek free, independent guidance from Citizens Advice or Citizens Advice Scotland.

I confirm I am neither a Micro Business nor a Small Business Customer ☐

Quote ID
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Set up Direct Debit.

Direct Debit details	
Name on the bank account:	
Bank account number:	
Sort code:	
Signature:	

By giving your payment details and signing the above, you confirm you are authorised to set up a Direct Debit on this account and grant tem. authorisation to setup the Direct Debit on your behalf.

Direct Debit Guarantee

This Guarantee is offered by all banks and building societies that accept instructions to pay Direct Debits. If there are any changes to the amount, date or frequency of your Direct Debit TEM-ENERGY Ltd will notify you 3 working days in advance of your account being debited or as otherwise agreed. If you request TEM-ENERGY Ltd to collect a payment, confirmation of the amount and date will be given to you at the time of the request.

If an error is made in the payment of your Direct Debit, by TEM-ENERGY Ltd or your bank or building society, you are entitled to a full and immediate refund of the amount paid from your bank or building society. If you receive a refund you are not entitled to, you must pay it back when TEM-ENERGY Ltd asks you to.

You can cancel a Direct Debit at any time by simply contacting your bank or building society. Written confirmation may be required. Please also notify us.

The name that will appear on your statement is TEM-ENERGY Ltd. Reference APP345LE78.

Contact Us
Email: hello@tem.energy
Address: THE ENGINE ROOM, 18 The Power Station Battersea Power Station Circus Rd S, Nine Elms SW11 8BZ London, England

Quote ID
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Contract confirmation.

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Signed on behalf of the customer	
Signature:	
Print name:	
Position:	
Date:	

Onboarding details.

Users

Please provide details of at least one person who will be allocated as the User for your account on our platform. Please note that your Primary User will receive login details for our customer portal, and will receive all communications regarding Direct Debits, Invoice release, and similar, and must be authorised to do so. You can also add an optional Secondary User who will be able to access the portal to view and download your documents. You can add, amend, or remove users at any time via contacting hello@tem.energy.

Primary User Details	
Email address:	
Forename:	
Surname:	
Position:	
Telephone: (include country code, e.g. +44...)	

Secondary User Details (Optional)	
Email address:	
Forename:	
Surname:	
Position:	
Telephone: (include country code, e.g. +44...)	

TEM-ENERGY Limited Customer Electricity Supply Contract – Terms and Conditions

1. **Overview of this contract**

1.1 This Electricity Supply Contract is an agreement between us and you for the provision of electricity which will be supplied to you by the Electricity Supplier (unless the circumstances set out in Clauses 3.7 to 3.10 apply, in which case electricity shall be supplied to you by the Renewable Generator and such supply facilitated by the Electricity Supplier), together with the associated Services relating to the Supply, which we will provide to you.

1.2 We are not ourselves a licensed electricity supplier or a party to the BSC but have arrangements in place with the Electricity Supplier to facilitate the Supply by them to you. This contract is (without prejudice to Clause 12.2) personal to you and TEM, and we are not acting as agent for the Electricity Supplier.

1.3 These Terms and Conditions, alongside the Quotation, form the Electricity Supply Contract in respect of the Supply and associated Services. Please read this Electricity Supply Contract carefully and ensure that you fully understand its contents. Only when you are happy to do so should you sign the Quotation by electronic signature in acceptance of these terms.

1.4. This Electricity Supply Contract shall be effective and legally binding on the date on which we have both: (i) received your signature on the Quotation in acceptance of this Electricity Supply Contract; and (ii) issued you with a written confirmation of our acceptance of this Electricity Supply Contract by email (the date of our email being the **"Signature Date"**). This written confirmation will expressly state that we accept the terms of this Electricity Supply Contract, and where we issue this acceptance email to you then physical or digital countersignature by us is not required for this Electricity Supply Contract to become effective.

1.5 To the extent there is a Deemed Contract in place between you and the Electricity Supplier during or after the Supply Period in accordance with this Electricity Supply Contract, or through the operation of the Acts, the Deemed Contract Terms will apply to the relationship between you and the Electricity Supplier during the relevant period in which they are applicable. Where, during the Supply Period, the terms of this Electricity Supply Contract apply alongside the terms of any Deemed Contract, the terms of this Electricity Supply Contract shall take priority for interpretation purposes.

2. **Interpretation**

2.1 References to statutory or regulatory provisions or Laws include any amendments, variations, consolidations or replacements, regulations made thereunder, re-instatements, or re-enactments made from time to time.

2.2 The expression "including" shall be construed without limitation.

2.3 Words and expressions used in these Terms and Conditions but not defined in Clause 19 (Definitions) are, where appropriate, instead defined in the Quotation.

2.4 Words and expressions used in this Electricity Supply Contract but not defined in the Quotation shall, where appropriate, be construed:

(a) as they are defined in the Acts or the Laws; or

(b) in accordance with their wider usage in the electricity industry generally.

2.5 Should any conflict arise between the content of this Electricity Supply Contract and the Laws, then the Laws shall take precedence.

2.6 The Electricity Supply Contract documents shall be construed in the following order of priority in the event of a conflict of terms:

(a) the Quotation, including any Special Terms which apply to the Supply; and then

(b) these Terms and Conditions.

2.7 Unless the context otherwise requires, words in the singular shall include the plural and words in the plural shall include the singular.

3. **Contract Period**

Commencement of Electricity Supply Contract

3.1 Unless otherwise detailed on the Quotation:

(a) this Electricity Supply Contract shall come into effect on the Signature Date, and shall expire on the Termination Date; and

(b) subject to the remainder of this Clause 3, the Supply and associated Services shall commence on the Start Date.

3.2 You will provide us with all the information we require to enable the Electricity Supplier to register your meters and provide the Supply from the Start Date.

3.3 We will arrange for the Electricity Supplier to register your Supply Points promptly unless:

(a) you ask us not to arrange for the Supply Points to be so registered;

(b) your previous supplier blocks the transfer of the Supply Points to the Electricity Supplier;

(c) the Electricity Supplier does not have the correct information from you to enable it to complete the registration;

(d) the Electricity Supplier is otherwise prevented from arranging the registration for reasons outside of its control; or

(e) you require a new Supply Point to be installed, in which case we will refer this to the Electricity Supplier to process.

3.4 We reserve the right to charge you for any additional costs which are incurred by us or the Electricity Supplier in the event that the registration of your Supply Points does not occur by the Start Date pursuant to this Clause 3 due to your act or omission. For the avoidance of doubt, we recognise that we shall not be entitled to recover the same costs under this clause and Clause 3.5(a) below.

3.5 Where the Electricity Supplier is unable to register the Supply Point(s) to enable the commencement of the Supply on the Start Date, then we may, at our discretion:

(a) vary the Contract Price in relation to affected Supply Point(s) to reflect any additional costs incurred by us or the Electricity Supplier, or any additional costs that we or the Electricity Supplier may incur due to the delay in the Electricity Supplier registering the Supply Point(s); or

(b) terminate this Electricity Supply Contract in relation to any Supply Point(s) where the Electricity Supplier is unable to register those Supply Point(s). In the event of such termination the Supply to the remaining Supply Points will remain unaffected.

Credit checking and support

3.6 This Electricity Supply Contract is conditional on you meeting our credit checking requirements, which are provided through a third party credit insurer. Where you do not at any time, meet our credit requirements we shall promptly notify you and you shall provide us with Credit Support within ten (10) days. Where you fail to provide us with adequate Credit Support within these timeframes, then we shall be entitled to terminate this Electricity Supply Contract immediately on the provision of written notice to you.

RED Plus Benefit

3.7 We shall provide a fixed monthly benefit as specified in the Quotation. This benefit will be accrued monthly and paid on a quarterly basis throughout the term of this Electricity Supply Contract.

3.8 Provision of the RED Plus Benefit is strictly conditional upon the continued operation of, and us receiving the benefit for, the Exempt Supply Scheme (including, but not limited to, P442 modification arrangements for the notification of Exempt Supply Volumes). We reserve the right to amend or withdraw the RED Plus Benefit entirely upon 10 days' written notice should any changes occur to the Exempt Supply Scheme or associated regulations. For the

avoidance of doubt, any such amendment or removal of the benefit shall not constitute a material breach of contract and shall not grant you the right to terminate the Electricity Supply Contract.

3.9 Payment is conditional upon an Electricity Supply Contract remaining in full force and effect with us for a minimum of three (3) months following each quarterly payment date.

3.10 Receipt of the benefit is further conditional upon your full compliance with, and execution of, any supplementary Scheme contracts provided by us. Such contracts will relate specifically to compliance with Scheme rules and not vary the RED Plus Benefit amount or any other contractual pricing specified in the Quotation.

4. Representations and warranties

4.2 Each Party warrants to the other Party that as at the Signature Date:

(a) it has the requisite power and authority to execute and perform this Electricity Supply Contract and the documents referred to in it (to which it is a party), and they constitute valid, legal and binding obligations on it in accordance with their respective terms;

(b) the execution and performance of this Electricity Supply Contract does not violate or conflict with any law applicable to it, any provision of its constitutional documents, any order or judgment of any court or other government agency applicable to it or any contractual restriction binding on it or affecting it; and

(c) its obligations under this Electricity Supply Contract constitute its legal, valid and binding obligations, enforceable in accordance with their respective terms subject to applicable bankruptcy, reorganisation, insolvency, moratorium or similar laws affecting creditors' rights generally.

5. Your obligations

5.1 You agree that:

(a) you will permit us to obtain, or where requested, promptly provide us with true and accurate opening, interim (upon reasonable request) and closing meter readings for the Supply Point;

(b) if you do not provide us with or permit us to obtain (in each case where requested) such opening and/or closing meter readings we and the Electricity Supplier shall be entitled to rely on estimated readings and to treat them as actual reads for the purposes of calculating your first and last Monthly Invoices;

(c) we will prepare our Projected Forecast of your consumption of the Supply Points under this Electricity Supply Contract and shall share this with you for approval. Where you (acting reasonably) disagree with our Projected Forecast you shall provide us with an Initial Forecast of your consumption of electricity at each of the Supply Point(s) during the Supply Period within five (5) days of our request;

(d) where there is a change in your actual or anticipated consumption requirements following agreement of the Projected Forecast or the provision of the Initial Forecast (or previously issued Revised Forecast, in each case as applicable) you shall immediately provide us with a Revised Forecast of your consumption in relation to the Supply Point(s) for the remainder of the Supply Period;

(a) title and risk in the electricity being supplied shall pass from the Electricity Supplier to you at the Supply Point (unless the arrangement envisaged by the

provisions of Clauses 3.7 to 3.10 of this Electricity Supply Contract applies, in which case title and risk in respect of any volumes being provided by the Renewable Generator, shall pass from the Renewable Generator to you at the Supply Point);

(e) you shall notify us in advance of the Start Date of any on-site generation facilities or ancillary services or demand-side arrangements which apply to you and you shall inform Us immediately if you have or use, or intend to have or use any on-site generation facilities or are a party to any ancillary service or commercial demand-side agreements, at any time during the Supply Period;

(f) you will provide us with accurate contact details (including name, address, email address and telephone number) for the primary point of contact in respect of this Electricity Supply Contract and keep us so informed at all times whilst this Electricity Supply Contract remains in place;

(g) you undertake that the Supply provided to you under this Supply Contract will be consumed by you on Site, and that you shall not on-supply the Supply to a third party, or use the Supply in any way likely to risk a person's health or safety, or to damage property;

(h) in the case that you are a Micro Business Consumer, or anticipate becoming a Micro Business Consumer during the Supply Period, you have informed us prior to contract signature. If you are not a Micro Business Consumer prior to contract signature but become one during the Supply Period, you will tell us immediately on becoming aware of this as we may need to make changes to this Electricity Supply Contract in order for it to remain suitable;

(i) the Supply will not be used for consumption by domestic consumers at any time during the Supply Period;

(j) you shall have and retain half-hourly metering at all times during the Supply Period;

(k) you agree that for so long as the Electricity Supplier is registered to your meter as the supplier responsible for providing the Supply to your Site, all electricity that passes through your meter or is supplied to your Site (or both) will be treated as having been supplied by the Electricity Supplier; and

(l) any electricity losses that happen on your side of the meter are your responsibility. We and the Electricity Supplier will not be responsible for any fault relating to the meter or other fitting that we (respectively) do not own or that has been provided on our behalf, or for any consequences resulting from that fault.

6. **Charges and Payment**

6.1 We will invoice you for the Supply on behalf of the Electricity Supplier in accordance with this Supply Contract, and you shall pay us the Charges in accordance with this Clause 6.

6.2 We may vary the Contract Price to the extent necessary where any information you provide to us is incorrect.

6.3 It is agreed that:

(a) the Contract Price will apply in respect of the Supply Points shown listed on the Quotation;

(b) where you require additional meters to be captured as part of the Electricity Supply Contract you will notify us and we will provide you with a separate quotation for the inclusion of these meters;

(c) the Contract Price does not include any Pass-Through Costs, which shall be passed through to you in full and which shall appear as a separate line item on your invoice;

(d) any new industry charges introduced during the period of this Supply Contract shall be passed through to you for your account in full. These sums will be included on the next available invoice to you;

(e) where the Contract Price includes a fixed price in relation to industry charges (which shall be clear from your Quotation) and such charge is based on a publicly available industry forecast, then we reserve the right to adjust the Contract Price to reflect (on a 100% pass through basis to you) the increase or decrease in published industry charges we incurred as against the prices that we used for forecasting purposes, it being recognised that the adjustment under this Clause 6.3(e) will not be triggered where the price difference between forecasted and incurred costs is non-material. Where we undertake the adjustment envisaged by this clause, we shall provide you with details of adjustment in charges as supplementary information to accompany your invoice; and

(f) we have set the Contract Price based on the line loss factor class residual charging band applicable to your Site at the date of this Supply Contract. Where your line loss factor class residual charging band changes during the Supply Period for any reason then we reserve the right to adjust the Contract Price to capture any additional exposure to us which arises because of this change.

6.4 On or before the date falling ten (10) Business Days after the end of each month, from the Start Date until the date on which all amounts payable under this Electricity Supply Contract have been invoiced, we shall send to you a written statement in respect of the preceding month together with a supporting invoice (a "**Monthly Invoice**") showing:

(a) the Supply delivered during the month, and the applicable Charges relating to that Supply; and

(b) any other amounts owing by one Party to the other pursuant to this Electricity Supply Contract in relation to the preceding month; and

(c) any VAT and other applicable taxes (as further detailed in Clause 6.5) which apply to any of the amounts referred to above, which do not form part of the Contract Price, but which shall be added at the appropriate rate.

6.5 Prior to the Start Date, you must inform us of your classification in respect of the Climate Change Levy, specifically if any exemptions apply. If you do not, we will apply the Climate Change Levy in full. If your classification in respect of the Climate Change Levy changes, you must notify us in writing within thirty (30) days of becoming aware of such change, failing which we will apply the Climate Change Levy in full.

6.6 You shall pay us the net amount payable by the Due Date.

6.7 Payment of each Monthly Invoice shall be made by the applicable Due Date in pounds sterling by either direct debit or direct bank transfer of immediately available funds to us to our account as specified in the Quotation. You recognise and agree that where you do not make payment to us by direct debit then we shall be entitled to add a further two percent (2%) fee to your Monthly Invoice to cover processing costs.

6.8 We will use reasonable endeavours to invoice you for your consumption using validated Consumption Data. However, where we receive non-validated, incomplete or, in our reasonable opinion, inaccurate

Consumption Data we will be entitled to charge you on the basis of the prevailing forecast. We will be entitled but not obliged to issue you with further invoices at any time after receipt of validated Consumption Data relating to the Supply Period, whether during or after the end of the Supply Period. For the avoidance of doubt, this Clause 6.8 survives termination of the Electricity Supply Contract.

6.9 **Material Change in Consumption**

(a) There are no forecast or volume tolerances under this Electricity Supply Contract.
(b) The Customer must notify tem in writing if it intends to make, or becomes aware of, any Material Change in its electricity consumption profile.
(c) A “Material Change” includes any significant or intentional change in consumption pattern or operational activity that could materially affect the Customer’s electricity demand — for example, expansion or reduction of operations, installation of on-site generation or storage, or a prolonged outage.
(d) Following notice (or discovery of an unnotified Material Change), tem may reasonably adjust the Contract Price to reflect any actual cost or benefit incurred. Any such modification will be fair, evidenced, and proportionate to the cost or benefit delivered.

6.10 If either Party disputes in good faith any sum shown in a Monthly Invoice as being payable by that Party (a "**Disputed Amount**"), such Party shall make payment of any undisputed amount and shall give notice of the Disputed Amount and the reasons for the dispute to the other Party by the applicable Due Date. The Parties shall seek to settle the Disputed Amount in accordance with Clause 15.

6.11 If a Party fails to pay the other Party any amount due as set out in this Electricity Supply Contract (or otherwise determined in accordance with Clause 15) by the applicable Due Date, interest shall be payable on that amount at the rate of two per cent (2%) above the base rate from time to time of the Bank of England, accruing on a daily basis from the Due Date until payment is made in cleared funds.

6.12 Any payment determined as being due from a Party following the resolution or determination of any such dispute under Clause 15 shall be made to the other Party within thirty (30) days of such resolution or determination and interest shall be payable on such payment in accordance with Clause 6.11 from the date the disputed payment was due until the date the payment is actually made.

7. **Meters and Equipment**

Ownership of Equipment

7.1 Unless otherwise agreed with you in writing, or provided for in the Electricity Supply Contract, neither we nor the Electricity Supplier own or have responsibility for the installation, operation, maintenance, renewal, De-Energisation, Disconnection or removal of any Equipment at your Supply Points.

Maintenance of Equipment

7.2 You are responsible for maintaining the Equipment and shall ensure that throughout the Supply Period the Equipment:

(a) meets all the appropriate standards and relevant certification requirements;

(b) is kept safe and secure, including from weather damage and third party interference; and

(c) is maintained in proper order to enable the Equipment to register the quantity of Electricity supplied to the Supply Point.

Examination and removal of Equipment

7.3 We are entitled to require that Equipment be removed, repaired or replaced where we or the Electricity Supplier consider it to be damaged, incorrectly recording data, past its certification date or incorrect for the product structure and you shall notify us as soon as reasonably practicable where you become aware of or suspect any such circumstances.

7.4 Where either Party disputes the accuracy of the Equipment, the Equipment shall as soon as reasonably practicable be examined and tested by an Expert appointed by agreement of the Parties (or, in default of agreement, appointed by the President for the time being of the Institution of Engineering and Technology). If the accuracy of the Equipment is found to be:

(a) outside the limits of accuracy stipulated by the BSC, the Equipment shall be recalibrated or replaced and the cost of removing, testing, recalibrating or replacing, and refitting the Equipment shall be paid by you; or

(b) within the said limits, the Equipment shall be deemed to be accurate and the cost of removing, testing and refitting the Equipment shall be paid by the Party that disputed the accuracy of the Equipment.

7.5 You will allow the exercise of the Access Rights:

(a) during reasonable pre-agreed times for the purposes of installation, maintenance, operation, meter reading, inspection or renewal of the Equipment; and

(b) at any time and without the need for prior notice for the purposes of inspecting, De-energising or Disconnecting the Supply to the Supply Point in the case of an emergency or for the purpose of averting danger or damage to life and/or property or where required by a Competent Authority or the network operator, in accordance with any industry codes or as is necessary to comply with Laws.

Metering Agent Appointment

7.6 You shall either (i) permit us to appoint an accredited Meter Operator, Data Collector, and Data Aggregator (each a "**Metering Agent**"), the cost of which shall be passed through to you via Pass-Through Costs; or (ii) contract (a) Metering Agent(s) yourself, for the duration of the Supply Period, the contracting of which you must confirm via email to hello@tem.energy. Please note that we reserve the right to request reasonable evidence of such contracts before making the necessary adjustments. Where you do not inform us of such an appointment our Metering Agent(s) will be, or will remain appointed for you, and we will charge you the associated Pass-Through Costs for the duration of the appointment of the Metering Agent(s).

7.7 Where any Metering Agent appointed by you is not performing to published industry standards and procedures, we shall notify you and where you do not promptly arrange for a suitable replacement, we reserve the right to appoint replacement alternative Metering Agents at your cost and at no liability to us.

8. **Liability**

8.1 Subject to Clause 8.2, neither Party shall be liable to the other for direct or indirect loss or damage howsoever arising under or in connection with this Electricity Supply Contract in excess of the Liability Cap applying on an aggregate basis.

8.2 Nothing in this Electricity Supply Contract shall limit or exclude the liability:

(a) of either Party for death or personal injury caused by the negligence of a Party, for fraud or in respect of any other loss which cannot be excluded or limited by law; or

(b) of you for any sums which we invoice you for in accordance with the provisions of this Electricity Supply Contract.

9. **Force Majeure**

9.1 Subject to the provisions of this Clause 9, a Party shall be relieved from liability under this Electricity Supply Contract for a failure to perform or a delay in performing any of its obligations under this Electricity Supply Contract if and to the extent such failure or delay is caused by Force Majeure.

9.2 As soon as reasonably practicable following the occurrence of Force

Majeure, the non-performing Party shall give the other Party prompt notice describing the circumstances of the Force Majeure including the nature of the occurrence and its expected duration, and the steps that are being taken to remove or mitigate the effects of the occurrence.

9.3 Where an event of Force Majeure subsists for a period exceeding one hundred and eighty (180) consecutive days then:

(a) where you are the Party impacted by the event of Force Majeure, we shall have the right to terminate the Electricity Supply Contract immediately on written notice to you;

(b) where the Electricity Supplier is impacted by the event of Force Majeure, then you shall consent to us varying the Electricity Supply Contract to accommodate the replacement of the Electricity Supplier with an alternative supplier; and

(c) where we are the Party impacted by the event of Force Majeure, then you shall have the right to terminate the Electricity Supply Contract immediately on the provision of written notice to us.

9.4 Upon termination in accordance with Clause 9.3, neither Party shall be liable to the other (except in relation to any accrued rights).

9.5 The Party claiming to be affected by Force Majeure shall use all reasonable measures to mitigate and/or remedy the effects of the Force Majeure as soon as possible.

10. Termination

Your right to terminate

10.1 You may terminate this Electricity Supply Contract upon written notice to us where:

(a) we are in material breach of any of our obligations under this Electricity Supply Contract, and within fourteen (14) days following receipt of written notice from you of such breach we have not remedied the breach; or

(b) we become Insolvent (as such term is defined in Section 123 of the Insolvency Act 1986) or a receiver, administrator, administrative receiver or liquidator is, or applies to be, appointed over any of our assets or we enter into any arrangement with our creditors.

Our right to terminate

10.3 You shall be in breach of this Electricity Supply Contract and we shall be entitled to terminate or to exercise any other remedies in Clause 10.5 upon written notice to you where:

(a) you are in material breach of any of your obligations under this Electricity Supply Contract, and within fourteen (14) days following receipt of written notice from ourselves of such breach you have not remedied the breach;

(b) an invoice remains unpaid for more than ten (10) Business Days beyond its Due Date (except where it is the subject of a bona fide dispute);

(c) you fail to pay any invoices by the Due Date on more than two (2) consecutive occasions (except in relation to any Disputed Amounts), or more than four (4) times in aggregate in any calendar year;

(d) you unlawfully interfere or damage any Equipment;

(e) you have committed theft of electricity in relation to the Supply;

(f) the agreement between TEM and the Electricity Supplier for the support provided by TEM to the Electricity Supplier in relation to the Supply is terminated; or

(g) you become Insolvent (as such term is defined in Section 123 of the Insolvency Act 1986) or a receiver, administrator, administrative

receiver or liquidator is, or applies to be, appointed over any of your assets or you enter into any arrangement with your creditors.

10.4 This Supply Contract shall terminate automatically where:

(a) the Electricity Supplier no longer holds a Supply Licence or is no longer able to continue to provide a Supply to you in respect of any or all Supply Points, and you do not consent to us transferring your Supply to an alternative supplier; or

(b) we seek your consent to transfer your Supply to an alternative supplier and you do not consent to us so transferring the Supply; or

(c) you, in our opinion (acting reasonably) suffers a material (and what we reasonably consider to be a demonstrably unacceptable) deterioration in your financial position, or that of your ultimate parent company, and you are unable to lodge Credit Support within a period of fourteen (14) days of our request.

10.5 The expiry or earlier termination of this Electricity Supply Contract shall be without prejudice to the rights, remedies, claims and obligations of the Parties which may have arisen or accrued prior to or on such expiry or termination.

10.6 Where you are in breach of this Electricity Supply Contract in accordance with the provisions of Clause 10.2 then we shall be entitled to exercise one or a combination of the following remedies:

(a) termination of this Electricity Supply Contract in accordance with the provisions of Clause 10.2; and/or

(b) arrange for the metering Equipment at the Supply Point to be De-energised or disconnected, and in doing so, we shall be entitled to exercise Access Rights and to recover from you the costs we have incurred in connection with such De-energisation or Disconnection; and/or

(c) invoice you on a weekly basis, it being recognised that the invoicing date shall then automatically become the weekly anniversary of the date on which we issue the first invoice for you and the payment date shall be automatically amended to be the date ten (10) Business Days after the applicable payment date; and/or

(d) invoice you in advance for your consumption, such invoice to be based on our reasonable estimate of your electricity consumption over a full month in advance.

11. Novation from Customer to third party

11.1 Where you are contemplating a transfer of the Site (by way of asset sale or share sale) to a third party ("**Incoming Customer**"):

(a) you will promptly provide us with notice of the contemplated transfer and with all requested details of the Incoming Customer;

(b) you will obtain consent from the Incoming Customer to our credit checking procedures; and

(c) you will make it a pre-condition of sale that the Incoming Party assumes all of the Customer's rights and obligations under this Electricity Supply Contract by way of novation on terms acceptable to us, acting reasonably.

11.3 If novation does not take place in accordance with Clause 11.1 then we shall be entitled to terminate this Electricity Supply Contract and the provisions of Clause 12 shall apply as if the Incoming Customer has entered into a Deemed Contract on the Electricity Supplier's Deemed Contract Terms.

12. **Deemed Contract**

12.1 In the event that you continue to receive the Supply from the Electricity Supplier at a Supply Point after the Termination Date you recognise and agree that a Deemed Contract will arise and the Electricity Supplier's Deemed Contract Terms (including pricing terms) shall automatically apply to such arrangement without any further notification to you, until such time as either:

(a) a Third Party Supplier has registered the Supply Point; or

(b) you enter into an express contract directly with the Electricity Supplier for the supply of electricity.

For the avoidance of doubt the Contract Price agreed between us in this Electricity Supply Contract is only applicable while this Electricity Supply Agreement is in place between you and TEM. If this Electricity Supply Contract is terminated, any supply of electricity from the Electricity Supplier to you will be charged by the Supplier at the rates set out in the Deemed Contract Terms therefore please make sure you are familiar with these.

12.3 The Electricity Supplier shall be entitled and have the ability to enforce the provisions of Clauses 5, 6, 7, 11, 12 and 18.1 by virtue of the Contracts (Rights of Third Parties) Act 1999.

13. **Transfer of Supply**

13.1 Where you wish to transfer the Supply Point to a Third Party Supplier at the end of the Supply Period you shall notify us and we shall co-operate with any such new Third Party Supplier to enable the transfer to be completed within twenty one (21) days of the Relevant Transfer Date (unless we otherwise agree in writing).

13.2 You shall not without our prior written consent arrange to transfer the Supply Point to a Third Party Supplier where:

(a) such transfer is to have effect before the end of the Supply Period; and/or

(b) there is an outstanding amount due from you on your account which is not a Disputed Amount,

unless this agreement has been terminated under Clause 10 (Termination).

14. **Change in Law**

14.1 Neither Party shall be in breach of this Electricity Supply Contract to the extent such breach is caused by any Change in Law.

14.2 It shall not be a basis for terminating this Electricity Supply Contract that any Change in Law has occurred.

14.3 In the event of any Change in Law which:

(a) renders it impossible or unlawful to give effect to this Electricity Supply Contract; or

(b) causes the provisions of this Electricity Supply Contract to become inconsistent with any Law (including any Change in Law affecting the electricity supply arrangements in Great Britain); or

(c) (without prejudice to (a) and (b) above) materially and adversely affects the benefits, risks, liabilities and rewards accruing to either Party under this Electricity Supply Contract,

then either Party may give notice to the other Party of such Change in Law event (together with such evidence as reasonably required by the other Party). Disputes as to whether this Clause 14.3 applies shall be subject to Expert Determination.

14.4 Within ten (10) Business Days (or such longer period as is agreed in writing between the Parties) of receipt of such notice, the Parties shall meet and discuss in good faith and agree (or if the Parties cannot agree within such period an Expert shall determine) the amendments required to this Electricity Supply Contract, such that:

(a) this Electricity Supply Contract (and its mechanics) remain consistent with Law, and can lawfully and practically be complied with, by each of the Parties;

(b) the same overall balance of benefits, liabilities, risks and rewards between the Parties exists in respect of the subject

matter of this Electricity Supply Contract as applied at the Start Date; and

(c) fluctuations in wholesale gas and/or electricity market prices, in themselves, (as opposed to fluctuations caused by Changes in Law) should not give rise to any amendments pursuant to this Clause 14.

15. **Expert Determination**

15.1 Subject to Clause 18.6, any dispute arising out of or in connection with this Electricity Supply Contract which is expressly stated to be subject to Expert Determination (other than a dispute determined under Clause 7.4) shall be determined by an Expert appointed in accordance with this Clause 15.

15.2 The Expert shall be a natural person with appropriate professional qualifications, independent of the Parties and with no interest in the dispute.

15.3 The Expert shall be appointed by agreement between the Parties (or, if they have not agreed within ten (10) Business Days after either Party first proposes an Expert, then in the case of a technical dispute, by the President from time to time of the Institution of Engineering and Technology, and otherwise by the President from time to time of the Law Society of England and Wales on the application of either Party).

15.4 The Expert shall act as an expert and not as an arbitrator. The Parties shall each have the right to make representations to the Expert. Subject to the requirements of this Electricity Supply Contract, the Expert shall regulate the procedure as he or she sees fit provided that the Parties shall use their respective reasonable endeavours to ensure that the Expert makes a determination as soon as reasonably practicable and in any event within forty (40) Business Days of being appointed. The Expert must give a reasoned decision in writing. The Expert shall have the power to open up, review, and revise any certificate, opinion, requisition or notice and to determine all matters in dispute.

15.5 Save in the case of fraud or manifest error, the decision of the Expert shall be final and binding on the Parties. The costs of the Expert shall be borne equally by the Parties unless the Expert decides that one Party has acted unreasonably in which case the decision can include orders that one or both of the Parties are to pay his or her costs, stating the proportion, and that one Party is to pay the other Party's costs. The Expert may take such advice and assistance from professional advisers or other third parties as he or she reasonably considers appropriate to enable him or her to reach a determination of the dispute.

16. **Confidentiality**

16.1 No Party shall at any time disclose to any person any Confidential Information, unless such disclosure is necessary for the purposes of performing its duties or obligations under this Electricity Supply Contract or is with the express written consent of the other Parties.

16.2 Clause 16.1 above shall not apply to information:

(a) which is or subsequently comes into the public domain otherwise than by failure of any Party to comply with Clause 16.1;

(b) which the receiving Party can prove was already in its possession before this Electricity Supply Contract came into effect;

(c) which is obtained from a third party who is free to disclose the same;

(d) which is disclosed by a Party to its professional advisors, or in the case of TEM, is disclosed to third parties performing services in accordance with the Supply, including for the avoidance of doubt, the Renewable Generator or prospective renewable generators;

(e) which is disclosed by a Party to the Electricity Supplier to

the extent that is it necessary in connection with the Supply; or

(f) to the extent that it is required by law, court order or any governmental or regulatory authority, or authority of competent jurisdiction to whose rules the Party making the disclosure is subject, whether or not having the force of law.

16.3 Each Party to this Electricity Supply Contract may disclose the Confidential Information of the other Parties, to the minimal extent necessary to its own employees, officers, representatives, advisers and funders or potential purchasers who need to know such information for the purposes of carrying out that Party's obligations under this Electricity Supply Contract or securing requisite funding or a potential purchaser. Each Party shall ensure that its employees, officers, representatives or advisers or funders and any potential purchaser to whom it discloses the confidential information of either or both of the other Parties are made aware of the confidential nature of the Confidential Information and comply with this Clause.

16.4 The obligations under this Clause 16 shall survive expiry or termination of this Electricity Supply Contract for a period of two (2) years.

17. **Data**

17.1 We shall be entitled to Process any Personal Data (as such terms are defined in the Data Protection Act 2018 and UK GDPR) we hold on you and to disclose this Personal Data as necessary to the Electricity Supplier to facilitate the Supply. In addition, where the provisions of Clauses 3.7 to 3.10 apply, you recognise and agree that we may disclose data about you and your Site (including Personal Data) to the Renewable Generator to facilitate the provision of the Licensed Exempt Supply.

17.2 We shall be entitled to retain relevant data in relation to the Supply for at least five (5) years after the Termination Date.

17.3 The Parties acknowledge that TEM is the Data Controller (as defined in the Data Protection Act 2018 and UK GDPR) in respect of any personal data that you provide to us in accordance with this Electricity Supply Contract. Please refer to our Privacy Policy available at https://www.tem.energy/privacy-policy/ for further details, including how to contact us and your rights. We will always handle your personal data in accordance with the Data Protection Act 2018 and UK GDPR and any sensitive personal information will be protected using additional security controls.

18. **National Terms of Connection and General Terms**

National Terms of Connection

18.1 Your Electricity Supplier acts on behalf of your electricity distribution network operator to make an agreement with you. The agreement is that you and your electricity distribution network operator both accept the National Terms of Connection ("NTC") and agree to comply with its conditions. This will take effect from the Start Date of this Electricity Supply Contract. The NTC is a legal agreement which sets out the rights and duties in relation to the connection at which your network operator delivers electricity to, or accepts electricity from you. If you would like further information about the NTC you can write to the Energy Networks Association at 4 More London, Riverside, London SE1 2AU or a copy of the NTC is available at www.connectionterms.co.uk.

General Terms

18.2 You shall not assign, transfer, novate or hold on trust for any person the whole or any part of this Electricity Supply Contract without our prior written consent, such consent not to be unreasonably withheld or delayed.

18.3 Except where specifically stated in these Terms and Conditions, this Electricity Supply Contract does not create any right enforceable by any person who is not a Party under the Contracts (Rights of Third Parties) Act 1999.

18.4 No waiver by a Party of any default by the other shall operate or be binding unless made in writing.

18.5 If you are or become a Micro Business Consumer or a Small Business Consumer and you wish to seek advice in relation to this Electricity Supply Contract, you can contact Citizens Advice or, if you are in Scotland, Citizens Advice Scotland, who can assist in providing information and advice. You can contact Citizens Advice on Adviceline (England): 0800 144 8848 or Advicelink (Wales): 0800 702 2020 or you can find details of your nearest Citizens Advice Bureau or speak to an advisor online at https://www.citizensadvice.org.uk/about-us/contact-us/. If you need to contact Citizens Advice Scotland, you can find details of your nearest Citizens Advice Bureau at https://www.cas.org.uk/about-us/contact-us or you can contact them via email at Info@cas.org.uk.

18.6 If you are or become a Micro Business Consumer or Small Business Consumer and you have an issue or complaint in relation to this Electricity Supply Contract we will attempt to resolve such issue or complaint in accordance with our Complaints Policy, if we are unable to resolve your issue or complaint to your satisfaction within eight (8) weeks you may refer the issue or complaint to the Energy Ombudsman for resolution via the Ombudsman ADR Scheme (details of this service may be found at https://www.energyombudsman.org/). Any determination made by the Energy Ombudsman will be final and binding on the Parties. You may contact the Energy Ombudsman on **0330 440 1625** or via enquiry@energyombudsman.org.

18.7 If any provision of this Electricity Supply Contract shall be declared invalid, unenforceable or illegal it shall not prejudice or affect the remaining provisions of this Electricity Supply Contract, which shall continue in full force and effect.

18.8 This Electricity Supply Contract constitutes the entire agreement between us both. We each hereby acknowledge and agree that this Electricity Supply Contract has not been entered into in reliance on any representation, warranty or other undertaking and neither of us has any right or remedy in relation to any such representation, warranty, or other undertaking.

18.9 The rights and remedies provided for by this Electricity Supply Contract are exhaustive, and exclude and replace all substantive (but not procedural) contractual rights or remedies expressed or implied by law.

18.10 This Electricity Supply Contract shall be construed and governed by the laws of England and subject to the exclusive jurisdiction of the English Courts.

18.11 You agree to sign this Electricity Supply Contract by electronic signature and recognise that electronic signature is conclusive of your intention to be bound by the terms of this Electricity Supply Contract as if signed by manuscript signature.

Complaints and Feedback

18.12 Should you have a complaint around the service you have received from us, please contact hello@tem.energy and ask for a copy of our Complaints Policy, which details the process to be followed by the Parties to seek to resolve the issue.

18.13 If you have any feedback on this Electricity Supply Contract or the service you have received from us, please direct it to hello@tem.energy.

19. Definitions

The following definitions shall apply to this Electricity Supply Contract:

"**Access Rights**" means our rights and the rights of the Electricity Supplier or the Electricity Supplier's agents, subcontractors or Service Providers to all reasonable access to the Supply Point (subject only to your reasonable requirements as to health and safety and site security) which shall be on notice to you, save for in the event of emergency or arising from an actual or suspected theft of electricity, where no notice shall be required;

"**Acts**" means the Energy Acts, the Electricity Act and the Utilities Act and any regulations made hereunder both as amended or re-enacted from time to time;

"Authority" means the Gas and Electricity Markets Authority established pursuant to section 1 (1) of the Utilities Act;

"**BSC**" means the Balancing and Settlement Code, administered by Elexon;

"**Business Day**" means Monday to Friday inclusive but excluding days identified as bank holidays in England;

"Change in Law" means:

(a) the coming into effect of any Law that is not in effect at the Start Date; and/or

(b) the modification, repeal or replacement of any Law after the Start Date; and/or

(c) a change after the Start Date in the interpretation or application by any Competent Authority of any Law,

but excluding (in each case) any changes to income tax or corporation tax, or remedies or sanctions exercised by a Competent Authority as a result of any breach of this Electricity Supply Contract by a Party;

"Charges" means the sum due in respect of the Supply during the Supply Period, which shall be calculated at the Contract Price plus the Pass-Through Costs, any Standing Charges and the applicable Value Added Tax ("**VAT**") and, subject to Clause 6.5 the Climate Change Levy;

"**Climate Change Levy**" means as set out and defined in the Finance Act 2000 and all and any subsequent amending legislation from time to time;

"Competent Authority" means to the extent having jurisdiction over either or both of the Parties, this Electricity Supply Contract and/or it subject matter, any court, agency, inspectorate, minister, ministry, administrative or regulatory body, authority, official or public or statutory person (in each case) of (or of part of) the United Kingdom (and such terms shall include any successor to any of the aforementioned persons);

"Complaints Policy" means our complaints policy which can be provided on request from the email referred to in Clause 18.12;

"Confidential Information" means all commercial, technical, financial and other information (including the existence and content of this Electricity Supply Contract) of whatever nature and in whatever form (whether written, oral, visual, recorded, graphical, electronic or otherwise) relating to the business, technology or other affairs of either Party or its employees, advisors, representatives or sub-contractors;

"**Consumption Data**" means actual meter readings from the Equipment received by us or the Electricity Supplier from you, or the appointed Service Provider, during the Supply Period showing the actual consumption of electricity in respect of the Supply Point;

"Contract Price" means the fixed price charged to you for the Supply during the Supply Period, as set out in the Quotation;

"Credit Support" means, where required by us, either a parent company guarantee or a bank issued letter of credit, the identity and status of the provider of which shall be subject our prior approval, for the Credit Support Amount which shall be issued to us and which shall expire three (3) months following the end of the Supply Period;

"Credit Support Amount" means the amount stated as such on the Quotation, or, where not stated on the Quotation, as subsequently notified to you by us in writing;

"Data Aggregator" has the meaning given to it in the BSC;

"Data Collector" has the meaning given to it in the BSC;

"**Deemed Contract**" means an electricity supply contract arising where a party supplies the Site other than in pursuance of an express contract, as recognised by the Electricity Act 1989;

"Deemed Contract Terms" means the terms and conditions (including rates) applying to Deemed Contracts published by the Electricity Supplier on the Supplier's Website, as may be updated and amended from time to time;

"**De-energise**" means the taking of action to stop the flow of electrical current to the Supply Point and "**De-energising**" and "**De-energisation**" shall be construed accordingly;

"**Disconnect**" means the permanent electrical disconnection of any structure, switchgear, equipment, line or device used by you at the Supply Point and "**Disconnecting**" shall be construed accordingly;

"**Disputed Amount**" has the meaning given to it in Clause 6.10;

"Due Date" means the date falling ten (10) Business Days from the date of the applicable invoice;

"Electricity Act" means the Electricity Act 1989;

"Electricity Supplier" means the licensed electricity supplier who will provide the Supply to you during the Term of this Electricity Supply Contract, being at the date of this Electricity Supply Contract, Versa Energy Limited (formerly P3P Energy Supply Limited) (Company Number 10872509) a company incorporated in England and Wales, and having its registered office at First Floor, 5 Fleet Place, London EX4M 7RD;

"Electricity Supply Contract" means the Quotation, together with these Terms and Conditions;

"Energy Acts" means the Energy Act 1976, the Energy Act 2004 and Energy Act 2011 and the Energy Act 2023;

"Energy Ombudsman" means the free and impartial service that is intended to resolve disputes between consumers and suppliers in the energy sector, details for which can be found at https://www.energyombudsman.org;

"End Date" means the anticipated end of the Supply Period as set out in the Quotation;

"Equipment" means any meters, Smart Meters, data loggers, mains, telecommunications, automated meter readers ("**AMR**") or other equipment provided for the purpose of supplying and ascertaining the quantity of electricity supplied hereunder;

"Exemption" means the Small Supplier Exemption which provides that the Renewable Generator may make suppliers without a Supply Licence in circumstances set out in Class A of Schedule 4 of the Order;

"Exempt Supply" means an arrangement between you and the Renewable Generator (facilitated by us and the Electricity Supplier);

"Exempt Supply Volume" means the volume of electricity supplied by the Renewable Generator to you pursuant to the Exemption, as further set out in Clause 3.7 to 3.10;

"Expert" means an expert appointed in accordance with Clause 15.2 and Clause 15.3 of this Supply Agreement;

"Expert Determination" means a dispute which is resolved by an Expert in accordance with the provisions of Clause 15 of this Supply Agreement;

"Force Majeure" in respect of a Party, any event or circumstance which is beyond the reasonable control of such Party (other than a lack of funds, or strikes of a Party's own employees, agents or contractors); provided that such event or circumstance could not have been prevented or overcome had such Party acted in accordance with Good Industry Practice;

"Forecast" means either the Projected Forecast, the Initial Forecast or the prevailing Revised Forecast, in each case as applicable;

"Good Industry Practice" means exercising that degree of skill, diligence, prudence and foresight that would reasonably and ordinarily be expected from a skilled and experienced operator engaged in the same type of undertaking under the same or similar circumstances or conditions;

"Industry Agreements" means any code of practice, agreement or legally binding obligation imposed on us or the Electricity Supplier, or into which it is, or becomes necessary, for either us and/or the Electricity Supplier to enter into or comply with to entitle the Electricity Supplier to purchase electricity in accordance with the Acts and the terms of its supply licence;

“Incoming Customer” has the meaning given to it in Clause 11.1;

"Initial Forecast" means your initial forecast of your consumption requirements at each of the Supply Points being supplied by the Electricity Supplier, which shall be given in accordance with Clause 5.1(c);

“Laws” means the Industry Agreements together with any other relevant legislation (including the Acts) or regulations, which has jurisdiction over either us, you or the Electricity Supplier and/or the subject matter of this Agreement;

"**Liability Cap**" means the maximum liability applying to each Party under the Electricity Supply Contract being the lesser of (i) six (6) times the monthly charges invoiced under this Supply Contract; or (ii) one million pounds sterling (£1,000,000) in each case in aggregate;

“Material Change” means any significant or intentional change in electricity consumption at a Supply Point that could reasonably be expected to materially affect the Customer’s overall electricity demand profile. This includes, without limitation, changes resulting from operational expansion or reduction, installation of on-site generation or storage (such as solar, CHP, or battery systems), the addition or removal of major equipment, or any prolonged or planned outage;

"Metering Agent" has the meaning given to it in Clause 7.6;

"Meter Operator" has the meaning given to it in the BSC;

"Micro Business Consumer" means a non-domestic consumer of electricity which (i) (A) employs fewer than ten (10) employees (or full time equivalent); and (B) has an annual turnover or balance sheet no greater than £2 million; or (iii) uses no more than 100,000kWh of electricity per year; or (iv) uses no more than 293,000kWh of gas per year;

"**Monthly Invoice**" has the meaning given to it in Clause 6.4;

"**Nuclear RAB Charges**" means the UK Government’s Regulated Asset Base (RAB) Charges, which collectively comprise the Nuclear RAB Supplier Obligation Levy and the Nuclear RAB Operational Levy;

“**Ombudsman ADR Scheme**” means an alternative resolution scheme established or formally endorsed by the Energy Ombudsman for resolving disputes for domestic consumers of electricity, Micro Business, and Small Businesses;

"Parties" means both us and you and **"Party"** is either one of us;

"Pass-Through Costs" means any costs, charges or levies We and/or the Electricity Supplier incur in making the Supply to you (or which are levied on us in respect of that Supply), which in all cases are not included in the Contract Price and which may be fixed in the Quotation and which we shall otherwise charge you on a 100% pass through basis (such costs including, without limitation, any costs connected with the appointment of Metering Agents in relation to the Supply Points, such costs to include without limitation appointment fees and any costs of and arising from visits to the Site and again, without limitation, any Nuclear RAB Charges);

"Permitted Tolerances" means the percentage basis within which you are entitled to over or under consume Supply by reference to the Forecast. Where the Permitted Tolerances are exceeded the provisions of Clause 6.9 shall apply;

"Projected Forecast" means the forecast of your consumption at each Supply Point(s) during the Supply Period which we prepare and which shall apply to this Supply Contract unless replaced by an Initial Forecast or Revised Forecast (as applicable);

"Quotation" means the quotation document agreed between us which contains the commercial details relating to the provision of Supply and associated Services, and which forms part of the Electricity Supply Contract;

"**Relevant Transfer Date**" means the day after the date on which you enter into an electricity supply contract with any Third Party Supplier;

“Renewable Generator” means a renewable generator of electricity

(other than a licensed supplier) who does not at any time supply electricity except electricity which the generator generates itself and who does not at any time supply more electrical power than 5 megawatts of which not more than 2.5 megawatts is supplied to domestic customers, as set out in the Exemption;

"Revised Forecast" means a revised forecast of your consumption requirements at each of the Supply Points being supplied by the Electricity Supplier, which shall be given in the circumstances outlined in Clause 5.1(d);

"**Service Providers**" means any meter reading agent, Metering Agent, meter equipment manager, meter asset provider, automated meter reading providers and any other third party appointed to act for or on behalf of either Party;

"**Services**" means the services we provide to you in respect of the Supply you receive from the Electricity Supplier under this Electricity Supply Contract, including but not limited to support with quoting, billing, invoicing, payments, reporting, demand response and co-location services and other customer service management activities;

"Site" means the Customer's premises which is subject to this Electricity Supply Contract as described in more detail in the Quotation;

"**Signature Date**" has the meaning given to it in Clause 1.4;

"**Small Business Consumer**" means a non-domestic consumer of electricity which either: (i) consumes less than or equal to 500,000 kWh of gas a year; (ii) consumes less than or equal to 200,000 kWh of electricity a year; or (iii) employees fewer than fifty (50) employs (or their full time equivalent) and has an annual turnover not exceeding £6.5 million or a balance sheet total not exceeding £5 million;

"**Smart Meter**" means a meter we can read remotely to measure how much electricity you are using, without having to visit the Supply Point, including, as appropriate, the communications hub and ancillary equipment serving the same, including an AMR meter;

"Special Terms" means, to the extent applicable, those terms listed on the Quotation. Where Special Terms apply, they shall take priority over these Terms and Conditions for interpretation purposes;

"Standing Charge" means any costs incurred by TEM or the Electricity Supplier as a result of an energised meter being available at the Supply Point;

"**Start Date**" means the date on which you intend to start to receive the Supply on the terms of the Electricity Supply Contract as set out in the Quotation;

"Supplier's Website" means the web address outlined on the Quotation, or such other address as may be notified to you by us from time to time;

"**Supply**" means the provision of electricity by the Electricity Supplier to you;

"**Supply Licence**" means a licence for the supply of electricity under the Act;

"**Supply Period**" means the period beginning on the Start Date and ending on the Termination Date;

"Supply Point" means the electricity metering point which is the point at which electricity may flow to the Site, as identified by a specific Meter Point Administration Number (MPAN) as set out in the Quotation;

"**Termination Date**" means either (a) the End Date; or (b) such earlier date where the Electricity Supply Contract is terminated in accordance with these Terms and Conditions;

"**Terms and Conditions**" means the terms and conditions set out in this document;

"**Third Party Supplier**" means any holder of a Supply Licence who is not the Electricity Supplier;

"UK GDPR" means the General Data Protection Regulation (Regulation (EU) 2016/679), as such is retained under UK law, and as may be amended from time to time;

"**Utilities Act**" means the Utilities Act 2000; and

“We” means TEM-Energy Limited (Company Number 13499591) whose registered office is at The Engine Room, 18 The Power Station Battersea Power Station, Circus Rd S, Nine Elms, London, United Kingdom, SW11 8BZ.

Appendix 1 to the TEM-Energy Limited Customer Electricity Supply Contract – Terms and Conditions

Principal Terms for Micro Business Customers

These principal terms are produced for the benefit of micro business customers of TEM-Energy Limited ("we/us/our"). We contract the supply of electricity to non-domestic customers. We do not have an electricity supply licence, so we work with our relationship licensed electricity supplier to make the supply of electricity to our customers. The licensed electricity supplier registers the meter points and provides electricity, but your supply contract is with us. Your supply contract is a legally binding agreement, so please do read it carefully.

What is a micro-business?

You will be considered a '**micro business**' if you are a non-domestic consumer of electricity and meet one of the following criteria:

- You consume less than or equal to 100,000 kWh of electricity per year; or;
- You consume less than or equal to 293,000 kWh of gas per year; or
- You employ fewer than ten (10) employees (or their full time equivalent) and have an annual turnover or annual balance sheet no greater than £2 million.

Have you become or are you about to become a micro business?

You must ***notify us immediately*** if you are a micro business customer or if you anticipate becoming (or do become) a micro business customer during your supply contract with us.

Our commitments to our micro business customers

We make the following commitments to all our **micro business** customers:

- We will provide you with details of the principal terms applicable to your supply contract with us (see below).
- We will ensure that within 10 days of you entering into (or extending) your supply contract with us we will send you a copy of our supply contract terms and conditions. These apply to your contract, other than where described in the principal terms below.
- We will contact you on or around 60 days prior to the end of your supply contract with details of our renewal offer and at the end of your supply contract we will send you a statement of renewal terms, which will apply where you extend the duration of your supply contract with us.

Our supply contract with you

The principal terms set out in this document (below), together with the supply contract terms and conditions and the quotation, are all legally binding and together these make up your supply contract with us ("**contract**").

Principal terms for micro business customers

How long is my supply contract for?

Your supply contract is for a fixed term. It starts on the 'signature date' detailed on your quotation document and ends on the 'end date', also shown on your quotation. Note that your 'start date' (being the date on which the supply commences) may be different from the signature date, depending on what you have agreed with us.

Further details of the duration of your supply contract can be found on the Quotation Document and in Clause 3.1 of the terms and conditions forming part of our supply contract.

How much will I have to pay for the supply?

The commodity (i.e. electricity) aspect of your supply contract operates on a fixed price basis – the applicable contract price is clearly set out on the quotation. We may vary the contract price to the extent necessary where any information you provide to us is incorrect or where you fail to provide us with a forecast of your consumption (or revised forecast of your consumption).

The contract price does not include any pass-through costs, being costs incurred by the licensed electricity supplier in making the supply to you. Where these are not included in the contract price these shall appear as a separate line item on our invoice to you. In addition, if any additional costs are incurred by us or the licensed electricity supplier in relation to your supply point registration because of your act or omission, then we may pass these costs on to you in certain circumstances.

Should there be any changes to laws or industry processes that materially affect your or our liability under the contract, we will notify you.

How does Tem's invoicing work?

We will send you a written statement and an accompanying invoice on or before the date falling 10 Business Days after the end of each month in respect of that month. This will show:

- the quantity of supply delivered to you during the month and any applicable charges relating to the supply;
- any other amounts owing either by you or by us in relation to that month; and
- any VAT and other applicable taxes which apply and do not form part of the contract price.

For information on your current charges please refer to your Customer Portal, your latest invoice or alternatively contact us via microbusiness-support@tem.energy

Full details of our invoicing and payment terms are included in Clause 6 of your Supply Contract and the accompanying definitions in Clause 19.

Metering information

It is important that we receive accurate and up to date information about the electricity you use to enable us to bill you accurately. If you suspect any issues with the metering equipment at your site, please notify us as soon as possible.

How do I change supplier?

If you wish to transfer the supply from the licensed electricity supplier to an alternative electricity supplier and either the transfer would take effect before the end of your supply contract, or there is an outstanding, undisputed amount due on your account with us, then you must obtain our prior written consent.

Where you wish to transfer the supply at the end of the supply contract period then you shall notify us, and we shall cooperate with the new supplier (and seek to ensure our licensed electricity supplier partner cooperates too) to enable the transfer to be completed within 21 days of the agreed transfer date.

How do I end my contract with you?

Your contract will automatically end on the 'end date' set out in the Quotation Document, unless the contract is terminated by either of us earlier than this date in accordance with the terms of the contract.

What will happen at the end of my Supply Contract with TEM?

We will contact you in writing on or around 60 days before the end date shown on the quotation forming part of your supply contract. We will set out the options available to you, which typically include extending your supply contract with us, entering into a new contract with us or moving the supply to another supplier.

Unless you agree a new supply contract with us,

then where you continue to receive the supply from our partner licensed supplier after your supply contract with us has expired, a deemed contract will arise between you and our partner electricity supplier. The terms of your existing supply contract will apply to this deemed contract, although the contract shall be charged at the electricity supplier's deemed contract rates, details of which are available at https://www.versa.energy/ under Deemed Contract Terms.

Please ensure you are familiar with the deemed contract rates and that you factor these into your decision-making process. Deemed contract rates are typically higher than standard contracted rates to reflect the increased risk to the electricity supplier of supplying a customer without a direct contractual arrangement being in place.

What happens if I want to seek advice in relation to my supply contract or there is a dispute in relation to my supply contract?

If you are a Micro Business Consumer and you wish to seek advice in relation to these terms, you can contact Citizens Advice or, if you are in Scotland, Citizens Advice Scotland, who can assist in providing information and advice. You can contact Citizens Advice on Adviceline (England): 0800 144 8848 or Advicelink (Wales): 0800 702 2020 or you can find details of your nearest Citizens Advice Bureau or speak to an advisor online at https://www.citizensadvice.org.uk/about-us/contact-us/. If you need to contact Citizens Advice Scotland, you can find details of your nearest Citizens Advice Bureau at https://www.cas.org.uk/about-us/contact-us or you can contact them via email at Info@cas.org.uk.

You may refer any dispute in relation to your supply contract to the Energy Ombudsman for determination via the Ombudsman ADR Scheme (details of this service may be found at https://www.energyombudsman.org/). The decision of the Ombudsman shall be final and binding on the Parties. The Energy Ombudsman can be contacted on 0330 440 1625 or via email to enquiry@energyombudsman.org.

Appendix 2 to the TEM-Energy Limited Customer Electricity Supply Contract – Terms and Conditions

Statement of Renewal Terms for Micro Business Customers

1. What is a micro-business and why are you receiving this notification?

01.1. You will be considered a 'micro business' if you are a non-domestic consumer of electricity and meet one of the following criteria. These criteria have been set by Ofgem, the energy regulator:

01.1.1. you consume less than or equal to 100,000 kWh of electricity per year; or

01.1.2. you consume less than or equal to 293,000 kWh of gas per year; or

01.1.3. you employ fewer than ten (10) employees (or their full time equivalent) and have an annual turnover or annual balance sheet no greater than £2 million.

01.2. Based on the information you have provided to us, you have been classified as a micro-business customer because you meet one of the above criteria.

2. When does my supply contract with TEM end?

02.1. Your supply contract is for a fixed period of time. It started on the 'signature date', which is detailed on your quotation document and will end on the 'end date' also shown on your quotation document. Your supply contract end date is a fixed date.

02.2. Note that your 'start date' (being the date on which the supply commences) may be different from the signature date, depending on what we collectively agreed when we put your supply contract in place.

02.3. Should you elect to renew your supply contract with us, the revised end date of your supply contract will be as set out on the revised quotation document accompanying this Statement of Renewal Terms.

3. What options do I have at the end of my supply contract with TEM?

03.1. You have a choice to make about what will happen at the end of your supply contract with TEM. You may (i) enter into a new contract with us; or (ii) move the supply to another supplier.

03.2. If you want to enter into a new supply contract with us please notify us via email to microbusiness-support@tem.energy. We will issue you with a quotation document for a new supply contract with us, confirm a new 'start date' and 'end date' for your contract and provide you with a copy of our supply contract terms and conditions, which append the Principal Terms for Micro Business Customers that apply at that time.

03.3. If you wish to transfer the supply from the licensed electricity supplier to an alternative electricity supplier and either the transfer would take effect before the end of your supply contract, or there is an outstanding, undisputed amount due on your account with us, then you must obtain our prior written consent to the transfer.

03.4. If you wish to transfer the supply at the end of the supply contract period then you shall notify us, and we shall cooperate with the new supplier (and seek to ensure our licensed electricity supplier partner cooperates too) to enable the transfer to be completed within 21 days of the agreed transfer date.

4. What happens at the end of my supply contract with TEM if I do not make one of the choices under paragraph 2?

04.1. Unless you agree to enter into a new supply contract with us, then your supply contract with us will automatically end on the 'end date' set out in your quotation document, unless one of us terminates the contract earlier in accordance with its terms.

04.2. Where you continue to receive the supply from our partner licensed supplier after your supply contract with us has expired, a deemed contract will arise between you and our partner electricity supplier. The terms of your existing supply contract will apply to this deemed contract, although the contract shall be charged at our partner electricity supplier's deemed contract rates, details of which are available at https://www.versa.energy/ under Deemed Contract Terms. Please ensure you are familiar with the deemed contract rates and that you factor these into your decision-making process. Deemed contract rates are typically higher than standard contracted rates to reflect the increased risk to the electricity supplier of supplying a

customer without a direct contractual arrangement being in place.

5. **What happens if I want to seek advice or if there is a dispute relating to my supply contract?**

05.1. If you wish to seek advice in relation to these terms, you can contact Citizens Advice or, if you are in Scotland, Citizens Advice Scotland, who can assist in providing information and advice. You can contact Citizens Advice on Adviceline (England): 0800 144 8848 or Advicelink (Wales): 0800 702 2020 or you can find details of your nearest Citizens Advice Bureau or speak to an advisor online at https://www.citizensadvice.org.uk/about-us/contact-us/. If you need to contact Citizens Advice Scotland, you can find details of your nearest Citizens Advice Bureau at https://www.cas.org.uk/about-us/contact-us or you can contact them via email at Info@cas.org.uk.

05.2. You may refer any dispute in relation to your supply contract to the Energy Ombudsman for determination via the Ombudsman ADR Scheme (details of this service may be found at https://www.energyombudsman.org/). The decision of the Ombudsman shall be final and binding on the Parties. The Energy Ombudsman can be contacted on 0330 440 1625 or via email to enquiry@energyombudsman.org.

TEM-Energy Limited Customer Electricity Supply Contract
RED PLUS Schedule

1. Overview of this Schedule

01.1. This RED Plus Schedule forms part of TEM-Energy's RED Supply Contract. The Supply Contract also includes TEM-Energy's Supply Contract Terms and Conditions and RED Quotation Document. In the event of any inconsistency between this Schedule and the remainder of the Supply Contract, then where this Schedule applies, the contract documents shall be construed in the following order of priority: (a) this Schedule; (b) the RED Quotation Document; and (c) the Supply Contract Terms and Conditions.

01.2. This Schedule shall be effective from the RED Plus Commencement Date set out on the RED Quotation Document and shall, subject to the terms outlined below, apply for the remainder of the Supply Period.

2. RED PLUS Exempt Supply Structure

02.1. We have contracted for the offtake of electricity with a Generator, who wishes to supply that electricity to commercial consumers. The Generator is an Exempt Supplier of electricity. Under our agreement with the Generator, we have been appointed to facilitate the provision of electricity generated by the Facility to commercial / business customers.

02.2. You wish us to facilitate the provision of electricity from the Generator to you on the terms set out in this Schedule. We will, in cooperation with the Electricity Supplier, accommodate this arrangement provided you continue to comply with the requirements of this Schedule.

02.3. You recognise and agree that when this Schedule is in place (from the RED Plus Commencement Date) electricity will be supplied to you by the Generator in place of the Electricity Supplier to meet your demand and that electricity will be Exempt Supply Volume.

You agree to take and buy the Exempt Supply Volume from the Generator from the RED Plus Commencement Date. We will, working with the Electricity Supplier, facilitate the provision of the Exempt Supply Volume to you.

02.4. Where the Generator is unable to meet your volume requirement through Exempt Supply Volume for any reason, then the Electricity Supplier will provide the shortfall Supply. The shortfall Supply will be made to you on the terms of the Supply Contract (which in respect to the shortfall, shall exclude this Schedule).

02.5. Where the Generator is unable to meet your demand through Exempt Supply Volume for any reason, then the Electricity Supplier will provide the shortfall Supply to you on the terms of the Supply Contract. In such circumstances you recognise and agree that neither us nor the Generator will have any liability to you in respect of any such failure to provide Exempt Supply Volume and you accept that the provision of the Supply is an adequate substitute for the Exempt Supply Volume in the circumstances.

02.6. Title and risk in the Exempt Supply Volume provided to you by the Generator from the RED Plus Commencement Date shall pass to you from the Generator at the Supply Point. Title and risk in any shortfall Supply provided by the Electricity Supplier shall pass to you in accordance with the terms of the Supply Contract.

3. Charges and Payment

03.1. We shall, following the RED Plus Commencement Date, continue to invoice you for the Exempt Supply Volume in accordance with the provisions of the Supply Contract, albeit the invoices for the Exempt Supply Volume shall be issued to you by us acting on behalf of the Generator, and not us acting on behalf of the Electricity Supplier.

03.2. The Contract Price stated in the Supply Contract shall continue to apply to the Exempt Supply Volume following the RED Plus Commencement Date, however this shall be paid by you to the Generator (and you will pay such amounts to us (in our capacity as collection agent for the Generator)).

03.3. In addition to the Contract Price, following the RED Plus Commencement Date, and subject always to Clause 3.7, additional revenue or costs savings (being Final Consumption Levies) may accrue as a result of the Generator being an Exempt Supplier and providing the Exempt Supply Volume to you. We shall, on behalf of the Generator, pass a proportion of this saving to you. The level of the additional revenue or savings will vary depending on the actual levels of metered output sold under this arrangement (as verified by the appointed ESNA). You will receive the Customer Payment from the Actual Monthly Payment Distribution.

03.4. The calculation of the Actual Monthly Payment Distribution may be amended from time to time to reflect changes in your usage profile, industry updates and/or our internal billing processes, as well as the provisions of Clause 7, but providing there are no changes to your usage profile or eligibility, such changes will not materially deviate from the basis of the calculation of the percentage set out in Annex 1 of this Schedule, although the level of the Customer Payment you receive may be impacted.

03.5. Your distribution of the Actual Monthly Payment Distribution shall be calculated at least once per calendar quarter from the RED Plus Commencement Date and shall be included as a credit line item or other suitable means on your electricity invoice in each monthly invoice. We shall use reasonable endeavours to, where requested by you, provide you with the breakdown of the Actual Monthly Payment Distribution alongside your invoice.

03.6. It is agreed that payment of the Actual Monthly Payment Distribution is conditional on the Supply Contract remaining in full force and effect for a period of three (3) months following each quarterly payment date. Where the Supply Contract terminates within three (3) months of an Actual Monthly Payment Distribution being made, we shall be entitled to reimbursement of that portion of the Actual Monthly Payment Distribution from you.

03.7. You recognise and agree that our obligation to make the payment of the Actual Monthly Payment Distribution to you in accordance with this Clause 3 is conditional on:

03.7.1. the Exempt Supply Scheme remaining in place and applicable. Where there are any amendments to the Exempt Supply Scheme or the Exempt Supply Scheme is withdrawn, the provisions of Clause 4.4 of this letter shall apply; and

03.7.2. your full compliance with and execution of any agreements provided by us in relation to the contents of this letter. In these circumstances, such agreements will relate specifically to compliance with the rules of the Exempt Supply Scheme and will not vary the amount of the Actual Monthly Payment Distribution or other contractual pricing in the Red Quotation Document.

03.8. In addition to the provisions of Clause 3.6 above, you recognise and agree that we are entitled to make any unilateral adjustments required due to the additional revenue or cost savings becoming unavailable or repayable for any reason (including, without limitation, where the Generator's Exempt Supplier status no longer applies or where we have passed through any overpayment to you). We may, at our discretion, invoice you for any overpayments or may set these off against future invoices issued to you.

03.9. We are only able to pass through the Actual Monthly Payment Distribution in respect of a full month's Exempt Supply Volume. Where the Generator's agreement with us (and consequently the terms of this Schedule) terminate or otherwise expire during the course of a month, then we shall not be liable to you for payment of the Actual Monthly Payment Distribution in respect of that month.

03.10. We shall retain the Intermediary Fee in consideration for the performance of our obligations as set out in this Schedule.

4. Exempt Supplier requirement

04.1. If (i) the Generator no longer qualifies as an Exempt Supplier or (ii) our agreement with the Generator terminates for any reason, or (iii) our Supply Contract terminates or then the terms included in this Schedule shall be immediately disapplied on written notice to you.

04.2. Where the circumstances set out in Clause 4.1(i) and Clause 4.1(ii) above apply, you recognise and agree that the terms of the Supply Contract shall apply without the provisions of this Schedule.

04.3. Your rights to terminate the Supply Contract are not affected by the provisions of Clause 4.1 above.

04.4. The cost savings conferred by this Exempt Supply Scheme are reliant on the Exemption and associated Exempt Supply Scheme remaining in full force and effect. Where there are any changes to the Exempt Supply Scheme, we may unilaterally update this

Schedule to the extent needed to reflect those changes and preserve the sharing of the saving based on the Actual Monthly Payment Distribution. Where it is not possible for us, at our discretion, to amend the Schedule and/or offer the Actual Monthly Payment Distribution due to a change in the Exemption or the Exempt Supply Scheme, then we shall be entitled to terminate the provision of Exempt Supply Volumes on notice to you. In these circumstances, the Supply Contract shall continue in full force and effect, and the Supply provided under it shall be provided by the Electricity Supplier.

5. General provisions

05.1. You recognise and agree that if you are or at any time obtain an exemption from the requirement to pay costs associated with the maintenance of the Contracts for Difference, Renewables Obligation, Feed in Tariff or Capacity Market schemes by virtue of being an Energy Intensive Industry then you shall not be entitled to participate in the Exempt Supply Scheme.

05.2. On entering this Red Plus arrangement, you warrant that you are not an eligible Energy Intensive Industry and you shall notify us immediately if this position changes.

05.3. You agree that we may disclose data about you and your Site (including Personal Data (as defined in the Data Protection Act 2018)) and meter data to the to the Generator, Electricity Supplier or any other industry body (including the relevant ESNA appointed by us) as necessary to facilitate the provision of the Exempt Supply Scheme. This disclosure is permitted and so shall not put us in breach of our confidentiality obligations under your Supply Contract.

6. Delegation of Authority

6.1 In signing the RED Quotation Document, you hereby give us authority to replace the Generator(s) under this arrangement freely without the need to obtain separate consent to that Generator change from you.

6.2 We shall, where exercising our rights under Clause 6.1, give you notice of the departing Generator and details of the incoming Generator (such details to include Generator name, address, company number, details of the Facility and proposed date of transfer). Where you do not, at your discretion, consent to the inclusion of the incoming Generator you shall confirm this to us within two (2) Business Days of our notification to you, in which case the incoming Generator shall not be incorporated into this RED Plus arrangement or, if incorporated, shall be promptly removed.

6.3 Where you do not consent to amendments pursuant to the terms of Clause 6.1 of this Schedule, you acknowledge that this failure to consent may impact the Customer Payment due to you, as the Exempt Supply Volume will be reduced. In addition, in these circumstances, we reserve the right to amend our Intermediary Fee by a reasonable and proportionate amount to reflect the difference between the Exempt Supply Volume as existed at the RED Plus Commencement Date

and any subsequent reduction in volume.

7. Definitions

Terms used in this Schedule and not defined in the Supply Contract shall have the following meanings:

"Actual Monthly Payment Distribution" means the amount we pass through to you in respect of additional revenue or saved Final Consumption Levies arising from the Exempt Supply Volumes.

"Actual Scheme Match" has the meaning given to it in Annex 1.

"Customer Payment" has the meaning given to it in Annex 1.

"Energy Intensive Industry" means an entity that carries out a "specified activity" under the Electricity Supplier Obligations (Amendment and Excluded Electricity) Regulations 2015 and holding a valid EII Certificate (as defined in The Energy Intensive Industry Electricity Support Payments and Levy Regulations 2024) confirming eligibility for levy exemptions.

"ESNA" means the applicable Exempt Supply Notification Agent appointed in respect of the Exempt Supply Volumes, details of which are available on request.

"Exempt Supplier" means a person (other than a licensed supplier) who does not at any time supply electricity except electricity which they generate themselves and who do not at any time supply more electrical power than 5 megawatts of which not more than 2.5 megawatts is supplied to domestic consumers, as set out in the Exemption.

"RED Plus Commencement Date" means the date set out in your RED Quotation Document.

"Exempt Supply Scheme" means the arrangement under which electricity is supplied by a Generator operating under an Exemption and that is administered in accordance with the Balancing and Settlement Code (including any interim arrangements and the P442 modification arrangements for notification of Exempt Supply Volumes).

"Exempt Supply Volumes" means electricity that flows from the Generator's Facility (measured at the Generator's Meter Points in MWh) and is supplied by the Generator to you under the Exemption.

"Exemption" means the Small Supplier Exemption which provides that an Exempt Supplier may make supplies without a Supply Licence in circumstances set out in Class A of Schedule 4 of the Order.

"Facility" means the Generator's electricity generation project, details of which are set out in your RED Quotation Document.

"Final Consumption Levies" means the charges which recover the costs associated with the Contract for Difference, Capacity Market, Renewables Obligation and Feed in Tariff support schemes.

"Generator" means the entity defined as such in your RED Quotation Document and as may be amended pursuant to Clause 6 above.

"Generator Payment" has the meaning given to it in Annex 1.

"Intermediary Fee" has the meaning given to it in Annex 1.

"Order" means the Electricity (Class Exemption from the Requirement for a Licence) Order 2001.

"RED Quotation Document" means the Quotation Document issued to you by us and forming part of your Supply Contract.

"Schedule" means this Red Plus Schedule.

"Supply" means the provision of electricity by the Electricity Supplier to you pursuant to the terms of the Supply Contract (as amended by this Schedule).

Annex 1 to RED PLUS Schedule - Commercials

Generator Payment (sum due to be retained by the Generator) = £/MWh (as per the relevant Quotation Document) x actual metered output from the Facility x Actual Scheme Match %

Customer Payment (sum due to you) = £/pm or p/Kwh (as per your RED Quotation Document) for each individual Customer within the scheme x Actual Scheme Match %

Intermediary Fee (sum retained by us) = [10%] of Total Scheme Benefit – (Intermediary Fee – Actual Intermediary Payment)

Actual Scheme Match % = actual metered output from Facility that is matched by the all the Customers within the scheme based on the actual metered consumption from the Customer Sites (as validated by the relevant ESNA)

Actual Intermediary Payment = Total Scheme Benefit – Generator Payment - Customer Payment

Exempt Supply Floor = the Generator Payment or Customer Payment where the Actual Scheme Match % is always equal to or higher than the level stated in the RED Quotation Document

Total Scheme Benefit = the total avoided Final Consumption Levies in respect of the Actual Scheme Match over the applicable period

Annex 2 to RED PLUS Schedule - Scheme Participants

At the RED Plus Commencement Date, the Customers in your scheme are listed in your RED Quotation Document. These Customers may be updated pursuant to the terms of Clause 6 of this Schedule.

Where you do not consent to amendments pursuant to the terms of Clause 6 of this Schedule, you acknowledge that this failure to consent may impact the Actual Scheme Match % and consequently the Generator Payment due to you, as the Exempt Supply Volume will be reduced. In addition, in these circumstances, we reserve the right to amend our Intermediary Fee by a reasonable and proportionate amount to reflect the difference between the Exempt Supply Volume as existed at the RED Plus Commencement Date and any subsequent reduction in volume.